

August 31, 2020



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 15071
(SEVENTH REVISION)

EXPIRATION DATE: 2024-07-31

(FOR RENEWAL, see 49 CFR § 107.109)

1. GRANTEE: Orbital Sciences LLC
Dulles, VA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of a launch vehicle subassembly containing cartridge, power device and certain Division 2.2 gases in non-DOT specification cylinders. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Maritime Dangerous Goods (IMDG) Code other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This special permit serves as an approval under 6.2.1.1.2 of the IMDG Code and as a "Competent Authority Approval" as defined in 7.9.2 of the IMDG Code and 49 CFR § 107.1.
 - e. For international shipments, see paragraph 8.d.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the IMDG Code.

August 31, 2020

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.62(c) in that alternative packaging is authorized; § 173.56(b) in that the subassembly is waived from the requirement to be tested, classed and approved; and § 173.302(a) in that non-DOT specification cylinders are authorized as provided herein.
5. BASIS: This special permit is based on the application of Orbital Sciences LLC, dated August 18, 2020, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Air, compressed	2.2	UN1002	N/A
Cartridges, power device	1.4S	UN0323	N/A
Helium, compressed	2.2	UN1046	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING:

(1) Packaging is a launch vehicle subassembly as described in the June 18, 2010 application on file with Office of Hazardous Materials Safety Approvals and Permits Division (OHMSAPD).

(2) The subassembly contains two cartridges assigned to EX-9905002.

(3) The subassembly contains 23 non-DOT specification spherical pressure vessels. The pressure vessels must meet the design criteria as described in the application for special permit on file with OHMSAPD.

(i) Twenty-two of the pressure vessels contain a mixture of compressed air and helium at 75 psig and one pressure vessel contains a mixture of compressed air and helium at 300 psig.

August 31, 2020

(ii) The lot of twenty-two pressure vessels have a MAWP (maximum allowable working pressure) of 1,920 psig at room temperature (they have a MAWP of 3,270 psig when operating at cryogenic temperatures).

(iii) The remaining pressure vessel has a MAWP of 3,270 psig.

b. OPERATIONAL CONTROLS: Only the launch vehicle subassembly may be transported aboard each motor vehicle or cargo vessel.

8. SPECIAL PROVISIONS:

a. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).

b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit, the HMR, and the IMDG Code.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of the States of origin, transit, and destination.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel and motor vehicle used to transport packages covered by this special permit.

August 31, 2020

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notices of certain hazardous materials incidents, and 171.16 detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for

August 31, 2020

Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in dark ink, appearing to read "Ryan J. Vail". The signature is fluid and cursive, with the first name "Ryan" and last name "Vail" clearly distinguishable.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae/kah